APPENDIX - III

DRAW BACK / DEEC DECLARATION
(to be filled for export goods under for draw back)

Shipping Bill No. and date .....

I/We, (Name of the exporter) do hereby further declare as follows :-

1. That the quality and specification of the goods as stated in this shipping bill are in accordance with the term of the export contract entered into with the buyer / consignee in pursuance of which the goods are being exported.
2. That there is change in the manufacturing formula and in the quantum per unit of the imported material or components, if any, utilized in the manufacture of the export goods and that the materials or components which have been stated in the application under rule 6 or rule 7 to have been imported, continue to be so imported and have not been obtained from indigenous sources.
3. *(A) That the export goods have not been manufactured by availing the procedure under Rule 12(1) (b) /13(1)(b) of the central excise rule 1944., OR Rule 18 and 19 of C.E.Rules.

   *(B) That the export goods have been manufactured by availing the produce under rule 12(1) (b) /13(1) (b) of the central excise rule, 1944 but we are not claiming DBK on the basis of all industry rates. We shall be claiming DBK on basis of special brand rate in terms of rule 6 of the DBK rules, 1995.
4. *(A) That the goods are not manufactured and/ or exported in discharge of export obligation against an advance license issued under the duty exemption scheme(DEEC) vide relevant import and export policy in force Or,

   *(B) The goods are not manufactured and/ or exported in discharge of export obligation under the duty exemption scheme (DEEC) in term of notification No.31/97 dated 1.4.97 or in discharge of export obligation against duty free replenishment certificate license in terms of notification No.48/2000- cus dated 25/ 4/2000 but, l/we are claiming draw back of only the central excise portion of the duties on inputs specified in the drawback schedule. Or,

   *(C) That the goods are not manufactured and are being exported in discharge of export obligation under the duty exemption scheme (DEEC), but l/we are claiming brand rate of drawback fixed.

   *(Strike out whichever is inapplicable)
5. That goods are not manufactured and or exported after availing of the facility under the duty entitlement passbook scheme as contained in para 7.14, read with para 7.17 of the export and import policy (April, 1997-31st March 2002),
6. Those goods are not manufactured and or exported licensed as 100% export oriented unit terms of imports and exports policy in force.
7. That goods are not manufactured and or exported by a unit situated in any free trade zone / export processing zone or any such zone.
8. That the goods are not manufactured partly or wholly in bond under section 65 of the Customs act, 1962.
9. That the present market value of goods is as follows :-

S. No.	Item No. in Invoice	Market Value.

10. That the export value of the goods covered any this shipping bill is not less then the total value of all imported material used in manufactured of such goods.
11. That the market price of the goods being exported is not less than the drawback amount being claimed.
12. That the drawback amount claimed in more than 1% of the FOB value of the export product; or the drawback amount claimed is less than 1% of the FOB value but more than Rs.500.00 against the shipping bill.
13. I/ We under take to repatriate export proceed within 6 months from the date of export and submit B.R.C. to Deputy Commissioner/Asst. Commissioner (Drawback). In case, the export proceed are not realized within 6 months from the date of export, I/ We will either furnish extension of time from R.B.I and submit B.R.C. with in such extended period or will pay back the drawback received against this shipping bill.

Dated: NAME AND SIGNATURE OF THE EXPORTER